

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

In re: SEAN RYAN	}	
License No. 068.0054951	}	Docket Nos. (2015-416, 422, 423, and
	}	471)

**DECISION ON REQUEST FOR
SUMMARY SUSPENSION ORDER**

Appearances:

Prosecuting the case: S. Lauren Hibbert, Esq.
Respondent: *pro se*

Members Participating:

Jamie Blouin
Jane Dale
Mimi Kevan
Bill Scarlet (telephonically)

Presiding Officer: George K. Belcher

**Summary Suspension Order
FINDINGS OF FACT, CONCLUSIONS OF LAW,
AND ORDER**

This matter came before the Board of Allied Mental Health Practitioners on a Request for a Summary Suspension. The hearing was held on November 19, 2015 at the Office of Professional Regulation Conference Room at the City Center in Montpelier, Vermont. Respondent appeared before the Board without counsel. The Board has authority to summarily suspend a license pending further action, if it determines that public health, safety, or welfare imperatively requires emergency action. 3 V.S.A. § 814(c).

Findings of Fact

Based on a Review of the pleadings in the file, and on the evidence presented to the Board at the hearing, the Board finds:

- (1) Respondent is a licensed clinical mental health counselor and is therefore subject to the regulatory authority of this Board. 3 V.S.A. §§ 129, 129a, 814, 26 V.S.A. § 4083, the Administrative Rules of the Board of Allied Mental Health Practitioners, and the Rules of the Office of Professional Regulation. 3 V.S.A. § 814(c) permits the Board to summarily suspend a license if it finds that public health, safety, or welfare imperatively requires

emergency action, and incorporates a finding to that effect in its order.

- (2) The prosecutor has filed a "Request for Summary Suspension." The Request is dated November 16, 2015 and a copy is attached to this Decision and Order. The Request alleges that the Respondent violated 26 VSA Secs. 3271(a)(3) [conduct which evidences unfitness to practice clinical mental health counseling]; 26 VSA Sec. 3271(a)(4) [engaging in sexual conduct with a client with whom the licensee has had a professional relationship within the previous five years]; 26 VSA Sec. 3271(a)(6) [entering into a relationship with a client that might impair the licensed clinical mental health counselor's professional obligations] and 3 VSA Sec. 129a(b)(2) [failure to practice competently and failure to conform to the essential standards of acceptable and prevailing practice]. The Request for Summary Suspension further alleges that the public health, safety or welfare imperatively requires emergency action.
- (3) Notice of this hearing was delivered to the Respondent in hand on November 16, 2015.
- (4) The Board finds for purposes of this hearing that the Respondent has conducted a private practice of mental health and drug and alcohol counseling in the Newport, Vermont area. He performs individual and group therapy. Between June 11, 2014 and early March of 2015, the Respondent counselled a client referred to herein as the "client". The client had a diagnosis of PTSD, ADHD and Personality Disorder.
- (5) During the course of his treatment of the client the Respondent disclosed to the client personal information about himself and his situation. While the Respondent explained that his disclosure of his personal information was intended to have a therapeutic purpose, nonetheless, he disclosed some of the family difficulties which he was having at the time.
- (6) In early March of 2015 (the exact date is uncertain) the Respondent terminated the treating relationship with the client because he was having romantic feelings towards her. Soon thereafter he began an intimate relationship with the client including sexual intercourse and oral sex within the premises of his office. There were sexual photos sent by the Respondent to the client. The relationship ended in mid-September of 2015 at the request of the client. The Respondent asked that she "keep his secrets".
- (7) It does not appear that the Respondent documented in his client clinical notes as to the real reason that he terminated the professional relationship.
- (8) The Respondent admitted to the Board that was involved in an unethical sexual relationship with the client and that he had not lived up to the standards of professional practice. He also conceded that he had allowed his professional judgment be skewed by his feeling for the client.
- (9) The Respondent suggested that he would continue his practice, if so agreed by the Board, and that he has arranged for another female counselor to be located in the same building as his office in order to assure that no further violations might occur.
- (10) The allegations in the Request for Summary Suspension (copy attached) have been established to the necessary degree.
- (11) The facts as presented imperatively require that emergency action be taken for the public health, safety, and welfare. Specifically, summary suspension is necessary to prevent patient harm to other clients of the Respondent if, for example, he were to be so swayed from professional obligations as he appears to have been in this case. While one can sympathize with feelings of attractions between the professional and a client, it appears undisputable in this case that Respondent violated the clear boundaries between

professional and client, the prohibitions involved in unequal positions of trust, and the obvious problems inherent in a blending of professional and personal relationships. All of these were apparently ignored by the Respondent in a gross fashion. If summary suspension is not ordered, the Board believes that similar ignorance of professional strictures and laws are likely to occur.

Conclusions of Law

Our Findings of Fact and Conclusions of Law in this Summary Suspension hearing are for purposes of deciding whether *at this time* there is an imperative need to take emergency action. 3 V.S.A. § 814(c). Our Findings of Fact and Conclusions of Law herein are for purposes of this Order only.

The Prosecutor's Request for a Summary Suspension is supported by the evidence presented. The Board concludes that the allegations in the Request for Summary Suspension have been established to the necessary degree. For purposes of this Summary Suspension Hearing, the Findings of Fact above do support Summary Suspension of Respondent's license. There is an imperative need to take emergency action. 3 V.S.A. § 814(c).

Vermont law requires that unprofessional charges be filed promptly with Respondent being afforded a prompt hearing. At any merits hearing in this matter, the prosecutor will bear the burden of proving unprofessional conduct. Our Findings and Conclusions in this matter will not absolve the prosecution or Respondent from producing or challenging relevant evidence at a merits hearing. The Findings of Fact and Conclusions of Law at a contested hearing will be based exclusively on the evidence admitted at that hearing.

Order

The Request for Summary Suspension is **Granted**. Respondent's license is summarily suspended pending proceedings for revocation or other action. These proceedings shall be promptly instituted and determined. 3 V.S.A. § 814(c).

APPEAL RIGHTS

This is a final administrative determination by the Vermont Board of Nursing.

A party aggrieved by a final decision of a board may appeal this decision by filing a written Notice of Appeal with the Director of the Office of Professional Regulation, Vermont Secretary of State, 89 Main Street, Fl. 3, Montpelier, VT 05620-3402 within 30 days of the entry of this order.

If an appeal is filed, the Director of the Office of Professional Regulation shall assign the case to an appellate officer. The review shall be conducted on the basis of the record created before the board. In cases of alleged irregularities in procedure before the board, not shown in

the record, proof on that issue may be taken by the appellate officer. 3 V.S.A. §§ 129(d) and 130a. To request a stay of the Board's decision, please refer to the attached stay instructions.

Vermont Board of Allied Mental Health Practitioners

By: Jamie Blouin
Jamie Blouin, Acting Chair

Date: November 24, 2015

OFFICE OF PROFESSIONAL REGULATION

DATE OF ENTRY: 11/24/15

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	Docket No. 2015-416
SEAN RYAN	)	2015-422
License No. 068.0054951	)	2015-423
		2015-471

REQUEST FOR SUMMARY SUSPENSION

Board Authority

1. The Vermont Board of Allied Mental Health (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct, to license and renew licenses, pursuant to 3 V.S.A. §§ 129, 129a and 814; 26 V.S.A. § 4083; the Rules of the Board of Allied Mental Health Practitioners and the Rules of the Office of Professional Regulation.
2. The Vermont Board of Allied Mental Health is authorized by 3 V.S.A. § 814 to summarily suspend the license of a licensed clinical mental health counselor when it finds that the public health, safety, or welfare imperatively requires emergency action.

Statement of Facts

1. Sean Ryan (the "Respondent") of Newport, Vermont is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0054951. This license was originally issued on or about February 19, 2010 and is currently set to expire on or about January 31, 2017.
2. At all times relevant, Respondent was self-employed as a Licensed Clinical Mental Health Counselor at his private practice located in Newport, Vermont.
3. Respondent began treating Patient 1 on June 11, 2014. Patient 1 has been diagnosed with ADHD and PTSD with borderline personality disorder.
 - a. Respondent began sharing details of his personal life, and related problems, with Patient 1 in February of 2015.
 - b. On March 4, 2015, Respondent sent Patient 1 a picture of himself lying in bed.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

- c. Respondent told Patient 1 that he loved her prior to discharging her from his practice on or about March 7, 2015.
 - d. Respondent began a sexual relationship with Patient 1 shortly after he stopped treating her in his clinical practice.
 - e. Respondent and Patient 1 had a sexual relationship for approximately six months, which included sexual intercourse, watching pornography together, and exchanging sexual texts and videos.
4. On October 16, 2015, in an interview with Investigator John Lewis, Respondent admitted that he had an ongoing sexual relationship with Patient 1.

Request for Relief

5. The facts as set out above establish that in order to protect the public health, safety, or welfare of the people of the State of Vermont, emergency action is imperative.
6. The above acts and circumstances, alone or in combination, violate:
- a. 3 V.S.A. § 129a(b)(2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice);
 - b. 26 V.S.A. § 3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling);
 - c. 26 V.S.A. § 3271(a)(4) (Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous five years); and
7. 2 6 V.S.A. § 3271(a)(6) (Entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations).

WHEREFORE, the State of Vermont respectfully requests that pursuant to 3 V.S.A. § 814(c), the Respondent's licensed clinical mental health counselor license, number 068.0054951, be summarily suspended, pending a hearing on the merits.

DATED at Montpelier, Vermont this 16 day of November, 2015.

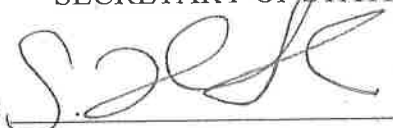
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Prosecuting Attorney
Office of
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89 Main Street
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05620-3402

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Prosecuting Attorney
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05620-3402